

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Charis Jones	Team: Squad #03	CCRB Case #: 201909956	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 11/14/2019 1:30 PM	Location of Incident: § 87(2)(b) located at § 87(2)(b)	18 Mo. SOL 12/29/2021	Precinct: 72		
Date/Time CV Reported Fri, 11/15/2019 10:59 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/15/2019 10:59 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Salvatore Lopiccolo	15555	930593	072 PCT
2. POM Michael Friscia	20077	962414	072 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Salvatore Lopiccolo	Discourtesy: Police Officer Salvatore Lopiccolo spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Michael Friscia	Abuse: Police Officer Michael Friscia questioned § 87(2)(b)	B . Exonerated
C . POM Michael Friscia	Abuse: Police Officer Michael Friscia questioned § 87(2)(b)	C . Exonerated
D . POM Michael Friscia	Abuse: Police Officer Michael Friscia entered § 87(2)(b) in Brooklyn.	D . Substantiated
E . POM Salvatore Lopiccolo	Abuse: Police Officer Salvatore Lopiccolo entered § 87(2)(b) in Brooklyn.	E . Substantiated
F . POM Salvatore Lopiccolo	Discourtesy: Police Officer Salvatore Lopiccolo spoke discourteously to § 87(2)(b)	F . Unfounded
G . POM Michael Friscia	Discourtesy: Police Officer Salvatore Lopiccolo spoke discourteously to § 87(2)(b)	G . Unfounded
H . POM Michael Friscia	Discourtesy: Police Officer Michael Friscia spoke discourteously to § 87(2)(b)	H . Substantiated

Case Summary

On November 15, 2019, § 87(2)(b) called the CCRB and filed this complaint. § 87(2)(b) was not present during this incident. § 87(2)(b) filed this complaint on behalf of the following staff members of § 87(2)(b) § 87(2)(b) § 87(2)(b) (Principal), § 87(2)(b) (Dean of School Culture), § 87(2)(b) (teacher), and § 87(2)(b) (teacher).

On November 14, 2019, at approximately 1:10 p.m., students were dismissed from § 87(2)(b) at § 87(2)(b) in Brooklyn. Police Officer Salvatore Lopiccolo and Police Officer Michael Friscia, both of the 72nd Precinct, and Police Officer James Guardino, now an officer for the MTA, were parked outside of the school.

PO Lopiccolo, PO Friscia, and PO Guardino exited their vehicle and approached two students who appeared to be fighting. PO Lopiccolo allegedly spoke discourteously to § 87(2)(b) (**Allegation A: Discourtesy, Unsubstantiated**). PO Friscia asked § 87(2)(b) and § 87(2)(b) for their names and identification (**Allegation B: Abuse of Authority, Exonerated**) (**Allegation C: Abuse of Authority, Exonerated**).

PO Friscia and PO Lopiccolo entered § 87(2)(b) (**Allegation D: Abuse of Authority, Substantiated**) (**Allegation E: Abuse of Authority, Substantiated**). Once inside the location, the officers spoke with the Principal § 87(2)(b) § 87(2)(b). During this conversation, PO Friscia and PO Lopiccolo allegedly said to § 87(2)(b) “Shut the fuck up, you’re not letting us speak” (**Allegation F: Discourtesy, Unfounded**) (**Allegation G: Discourtesy, Unfounded**). PO Friscia also called § 87(2)(b) “a clown” (**Allegation H: Discourtesy, Substantiated**).

No arrests were made nor any summons issued as a result of this incident.

The investigation obtained PO Friscia’s BWC, which captured the majority of this incident (Board Review 01). § 87(2)(b) provided the investigation with cell phone footage of a portion of the incident as well (Board Review 02).

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Salvatore Lopiccolo spoke discourteously to § 87(2)(b)
Allegation (B) Abuse of Authority: Police Officer Michaels Friscia questioned § 87(2)(b)
Allegation (C) Abuse of Authority: Police Officer Michaels Friscia questioned § 87(2)(b)

§ 87(2)(b) (Board Review 03) testified that she and § 87(2)(b) both staff members at the § 87(2)(b) were standing on the corner across from the school, making sure that the middle and high school students dispersed quickly after being dismissed. § 87(2)(b) observed a police vehicle parked on the corner diagonal from the school. § 87(2)(b) heard a student say, § 87(2)(b) “they’re fighting.” § 87(2)(b) observed three officers exit the police vehicle and run across the street toward a crowd of students. § 87(2)(b) placed herself in-between the officers and the group of students that stood on the corner. § 87(2)(b) saw § 87(2)(b) separating two middle school students. The officers approached and § 87(2)(b) and said to them, “Hey, thanks so much, it’s okay we got it from here.” PO Lopiccolo turned to look at her and said, “Don’t tell me how to do my fucking job.” § 87(2)(b) responded, “No it’s okay, we got them, they’re our students.” The officers told § 87(2)(b) to walk away. § 87(2)(b) refused and said, “I’m sorry, I’m not gonna leave three angry white cops with my black and brown babies.” PO Lopiccolo asked § 87(2)(b) for her ethnicity. PO Friscia asked § 87(2)(b) for her name and to provide identification. § 87(2)(b) walked away from the officers with one of the students that had been fighting and brought him inside of the school.

§ 87(2)(b) § 87(2)(b) s (Board Review 04) testimony was § 87(2)(g) PO Lopiccolo said to § 87(2)(b) “Get the fuck out the way” and, “Get the fuck out of the way, let us do our fucking jobs, those young men were fighting.” PO Lopiccolo told § 87(2)(b) that he did not appreciate her comment regarding “angry white cops” and that it was “fucking racist.”

PO Friscia asked for § 87(2)(b)'s name, § 87(2)(b)'s name, and the names of the two students. § 87(2)(b) did not provide any of the requested information. PO Friscia's BWC captures the majority of this portion of the incident (Board Review 01). The beginning of PO Friscia's BWC shows § 87(2)(b) holding onto one of her students while PO Lopiccolo moves his hands while speaking to her. At the 01:00 mark, the audio begins, and § 87(2)(b) tells the officers that she has her kids and that they can walk away. From 01:25 to 01:40, § 87(2)(b) walks away with one of her students. PO Friscia asks for her name and the names of the students that were fighting. § 87(2)(b) does not respond. PO Lopiccolo can be heard yelling in the background that he is going to speak with the Principal. PO Friscia then turns and asks § 87(2)(b) for his name and tells him that they will need to speak with the principal.

§ 87(2)(g)
§ 87(2)(b). PO Lopiccolo did not recall if he said, "Don't tell me how to do my fucking job" during his initial conversation with § 87(2)(b) nor did he hear any other officer make that statement. PO Lopiccolo did not recall saying, "Get the fuck out of the way" or "Let us do our fucking jobs" nor did he hear any other officer make that statement. PO Lopiccolo did not refer to the comment § 87(2)(b) made as "fucking racists" nor did he hear any other officer do so.

PO Friscia (Board Review 06) testified that as they approached the two students, § 87(2)(b) grabbed them and said, "Excuse me, I don't want white officers talking to my black and brown babies." As soon as § 87(2)(b) made that statement, PO Friscia activated his BWC because he was taken aback and felt that he needed to record the interaction. § 87(2)(b) escorted the two students away from the officers towards the school. PO Friscia asked § 87(2)(b) and § 87(2)(b) for their names because he wanted to know who he was speaking to. PO Friscia did not hear PO Lopiccolo say, "Let us do our fucking job" or use any other profanity. PO Friscia did not hear PO Lopiccolo use the term "fucking racist."

NYPD Patrol Guide Procedure 212-11 defines a level one encounter as a request for information in an encounter between a civilian and a uniformed member of the service conducted for the purpose of requesting information from the civilian. The uniformed member of the service must have an objective credible reason to approach the civilian. This type of encounter does not require any suspicion of criminal activity. The objective is to gather information and not to focus on the person as a potential suspect. A police officer may seek information related to the reason(s) the person was approached, such as the person's name (Board Review 07).

§ 87(2)(g)
§ 87(2)(b). It is therefore recommended that **Allegation A** be **Unsubstantiated**.

§ 87(2)(g)
§ 87(2)(b). It is therefore recommended that **Allegations B** and **C** are **Exonerated**.

Allegation (D) Abuse of Authority: Police Officer Michaels Friscia entered § 87(2)(b) located at § 87(2)(b) in Brooklyn.

Allegation (E) Abuse of Authority: Police Officer Salvatore Lopiccolo entered § 87(2)(b) located at § 87(2)(b) in Brooklyn.

Allegation (F) Discourtesy: Police Officer Salvatore Lopiccolo spoke discourteously to § 87(2)(b)

Allegation (G) Discourtesy: Police Officer Salvatore Lopiccolo spoke discourteously to § 87(2)(b)

Allegation (H) Discourtesy: Police Officer Michaels Friscia spoke discourteously to § 87(2)(b)

§ 87(2)(b) (Board Review 08) testified that he received a call about the interaction between his employees and the officers. § 87(2)(b) exited the school to meet § 87(2)(b) and the officers. § 87(2)(b) asked the officers what happened, and they accused § 87(2)(b) of being racist because she brought up their race. § 87(2)(b) asked the officers to stop yelling. The officers continued to express their frustration with the

way § 87(2)(b) addressed their presence and referred to their race. The officers told § 87(2)(b) that they wanted to speak with the principal. § 87(2)(b) responded that the principal was in a meeting. § 87(2)(b) told the officers that the school did not typically allow police inside of its building and requested that they not come in. The officers ignored § 87(2)(b) request and walked towards the school. Once they reached the front entrance, § 87(2)(b) stood in the doorway and blocked their entry into the school's entrance with his body. PO Lopiccio, PO Friscia, and PO Guardino pushed past § 87(2)(b) on both sides and entered the building. § 87(2)(b) asked the officers to step into the high school principal's office, directly next to the entrance. § 87(2)(b) (principal of the middle school) came downstairs and entered the room. PO Friscia told § 87(2)(b) that her employees were teaching kids how to be racist and that he has had "colored bosses and white bosses." § 87(2)(b) explained to PO Friscia that "colored" was not an appropriate term to use and PO Friscia responded, "Look at you, sitting over there acting like you're too educated for your own good." PO Friscia then referred to § 87(2)(b) as "a clown."

§ 87(2)(g)
§ 87(2)(b) stated that under normal procedure, the community officer would contact the school ahead of time if officers wanted to enter the school. The officers would then sign in at the front desk and receive visitor passes to access the building. § 87(2)(b) stated that PO Friscia and PO Lopiccio said, "Shut the fuck up, you're not letting us speak."

§ 87(2)(g)
§ 87(2)(b) testified that she asked the officers about what had occurred outside. The officers explained that they were really upset that a staff member said, "I don't want to leave my black and brown babies around three white officers." § 87(2)(b) asked § 87(2)(b) if he could give her some background about what happened, and § 87(2)(b) agreed. § 87(2)(b) walked § 87(2)(b) through what happened. While § 87(2)(b) spoke, the officers interrupted him. It was clear to § 87(2)(b) that what was going on was not urgent but instead emotionally charged. The officers continued to speak to § 87(2)(b) and § 87(2)(b) about how offended they were about the comment. § 87(2)(b) was shocked that the perceived offense the officers took to the comment became so huge to them that they pushed into the building and insulted the staff. One of the officers called § 87(2)(b) "a clown." The officers made no attempt to deescalate the situation. At no point during their time in speaking with § 87(2)(b) did the officers bring up the horseplay they witnessed on the corner between the two students. It was clear to § 87(2)(b) that the officers entered the building because they did not like the comment § 87(2)(b) made about not wanting white officers around the students.

PO Friscia's BWC captures this portion of the incident most clearly (Board Review 01) At 15:20, PO Friscia crosses the street and walks towards the school. At 16:16, § 87(2)(b) says, "Before you enter my building..." PO Friscia cuts him off and says, "We don't need permission, we don't need permission." PO Friscia walks past § 87(2)(b) and enters the building. At 25:44, the officers are inside of the principal's office with members of the school staff, including § 87(2)(b). § 87(2)(b) tells the officers that when they had originally stepped in to address the students, he had already separated the boys and told the officers that he had it. At 25:55, PO Lopiccio responds, "And we are happy that you had it and that it didn't escalate. That's not the point. The point is that the female said we don't want white officers. That's the whole reason why we are here, sir. It has nothing to do with anything else." At 26:04, § 87(2)(b) states that the officers referring to § 87(2)(b) as "that female" does not feel right to him and he asks if they could refer to her as § 87(2)(b). The officers respond, "That's fine." At 26:27, § 87(2)(b) continues to explain that he had the situation outside under control. PO Lopiccio says, "Firstly sir, it was a volatile situation." § 87(2)(b) responds, "But it wasn't." PO Lopiccio says, "But it could be." At 27:10, PO Lopiccio asks § 87(2)(b) what she would like to do because they have to resume patrol. § 87(2)(b) asks if some people can leave the room. § 87(2)(b) and other staff members exit. PO Lopiccio, PO Friscia, § 87(2)(b) and § 87(2)(b) remain inside. At 28:10, PO Friscia says, "Before we leave, I just want to say one thing, and this is addressed to you." PO Friscia points at § 87(2)(b). PO Friscia continues, "I was in the Board of Ed for four years before this and I have had white bosses, I have had colored bosses." § 87(2)(b) interrupts briefly and makes a comment about how the term "colored" is incorrect. PO Friscia responds, "Black, Black, I have had black. I have had white, which I am. I have had Spanish, which is what my boss is now." PO Friscia continues to explain that the students are going to have bosses that are of all different races. § 87(2)(b) makes an inaudible comment. At 28:50, PO Friscia says, "You are acting like a clown. This is not a race thing. You are

being unprofessional and too educated than I am and that is ridiculous. I am out of here.” At 29:03, PO Friscia points at § 87(2)(b) and says, “You are trying to be too smart for your own good.” The officers tell § 87(2)(b) and § 87(2)(b) that they have to go. PO Lopiccolo says, “The bottom line is that we were told to our faces that we don’t want white officers here.” § 87(2)(b) explains to PO Lopiccolo that her school works closely with specific officers and that the reality is that her students of color have had negative interactions with police. PO Lopiccolo says, “If the adults encourage the hatred, how are we ever going to work together. If the adults despise the white police officers...” § 87(2)(b) says, “Did she say she hated white police officers?” PO Friscia responds, “She said she doesn’t want white officers talking to her black and brown students. What are you saying?” PO Lopiccolo interjects that “he went to college too...you’re insulting us. It’s a matter of semantics. I went to college too.” At 30:19, § 87(2)(b) states that she doesn’t think anyone is trying to question ... PO Friscia interjects, “He’s being ignorant.” PO Lopiccolo continues to tell § 87(2)(b) that if she wants to take this to another level they can because they have it recorded. PO Lopiccolo says, “If you prefer officers of color, then we need to revise our city charter and don’t hire any white police officers.” § 87(2)(b) says, “What we want is to work collaboratively with the officers.” § 87(2)(b) emphasizes that she wants to work together but that she has heard some problematic things during this meeting. § 87(2)(b) says that “you” (referring to PO Friscia) telling our Dean of School Culture that he is too smart for his own good and that he is acting like a clown...” PO Friscia interrupts and says, “What he said was insulting.” PO Lopiccolo says, “So unless you call for us, you don’t want us basically.” § 87(2)(b) says, “In general, if something is happening in front of our school and our staff is there, we prefer to handle it.” PO Lopiccolo says, “Ma’am we are obligated to act as New York City Police Officers ...If something happens to one of your children you are going to say the cops did nothing.” § 87(2)(b) says, “I am expressing our general preference that if something happens in front of our building, we handle.” PO Lopiccolo says, “Okay, thank you ma’am for your time.” PO Lopiccolo and PO Friscia exit the school.

§ 87(2)(b) provided the investigation with cell phone footage of the surveillance video at the front entrance of the school (Board Review 02). The video is 19 seconds in length and shows § 87(2)(b) approaching the main door while talking on the phone. PO Friscia and PO Lopiccolo are directly behind him. § 87(2)(b) stands in the doorway and put his hands in front of him to block the officers from entering. PO Friscia and PO Lopiccolo push past § 87(2)(b) and enter the school.

PO Lopiccolo (Board Review 05) testified that when he initially approached the staff members outside, he already knew that what he observed was not a serious fight between the students and by the time they reached the sidewalk the students had ceased fighting. PO Lopiccolo did not observe any injuries on the students and at that point determined that a crime had not been committed. After § 87(2)(b) made the comment about not wanting white officers around her black and brown students, PO Friscia decided that the Principal needed to be notified about it and PO Lopiccolo agreed. PO Lopiccolo clarified that he had already determined that the physical altercation between the boys was not an assault or an emergency and that although he wanted to bring interaction to the attention of the principal, it was not the primary reason for entering the school. § 87(2)(b) exited the school and met the officers on the corner. PO Lopiccolo and PO Friscia informed § 87(2)(b) that they were going to speak to the Principal inside the school. § 87(2)(b) told him that he did not want them inside the school. The officers responded that they did not need his permission to enter the school because they were investigating a possible crime. PO Lopiccolo stated that they were going to speak to the principal anyways because they wanted to inform her about a community meeting that was recently held. PO Lopiccolo stated that as NYPD Officers, he and his partners could enter the building because it was a public space. PO Lopiccolo stated that entering a school would be the same as entering a grocery store or a restaurant. A warrant is not needed to enter a school. It was his objective to bring the issues, a combination of the altercation and the comment, to the principal’s attention. PO Lopiccolo did not consider the circumstance to be an emergency at the time they entered the school. During the officers’ conversation with § 87(2)(b) PO Lopiccolo explained that he and his officers were visibly upset by the comment § 87(2)(b) made about their whiteness. § 87(2)(b) acknowledged that this was a charged subject and that because of the history between the police and students, she did not want white officers coming to the school. PO Lopiccolo was appalled and noted that if he made the same statement about her staff it would be a very different situation. § 87(2)(b) continued to give the officers “a history lesson on the strife between the police and children.” The conversation concluded with § 87(2)(b) telling the officers that they were not wanted there based on their demographic. PO Lopiccolo could not recall if PO Friscia referred to § 87(2)(b) as “a clown.”

§ 87(2)(g)

PO Friscia added that he could enter the school at that time because they needed to investigate whether what happened between the students was an assault. PO Friscia needed to determine whether an ambulance needed to be called, if a report needed to be generated, or if an arrest needed to be made. PO Friscia stated that there was no procedure in place prohibiting them from entering the school. PO Friscia stated that his main concern was checking to see if the student was okay. He wanted to determine if the student was injured and determine if an assault had taken place. Once inside the school, PO Friscia and the other officers spoke to § 87(2)(b) about why they were initially posted at the corner as well as the statement made by § 87(2)(b) § 87(2)(b) and § 87(2)(b) were in the room during this time. PO Friscia acknowledged saying that § 87(2)(b) was “acting like a clown.” PO Friscia made this statement because § 87(2)(b) sat in a chair, crossed his leg, and was eating chips during their conversation. PO Friscia stated that he made this statement because he felt his intelligence was being insulted and did not think that was how a professional should act.

The NYPD, DOE, and City of New York Memorandum Of Understanding states that the parties agree that: a) superintendents, principals, and other appropriate DOE personnel are primarily responsible for addressing and responding to non-criminal student misconduct; b) that such personnel shall address and respond to non-criminal misconduct through the use of appropriate classroom management and de-escalation techniques, etc.; and c) such personnel should make reasonable efforts, where appropriate, to minimize disruption to students’ education and to address student behavior through guidance interventions and other school based supports. 7) The parties agree that school personnel should not call upon members of the NYPD to address or respond to non-criminal, minor misconduct where such school personnel can safely address such misconduct (June 19, 2019) (Board Review 10).

NYPD Patrol Guide 203-09 states that officers must be courteous and respectful in their interactions with the public (Board Review 11).

It is undisputed that the officers entered § 87(2)(b) and it is undisputed that the school staff members did not want them to enter because they believed it was unnecessary and that they had the situation with the students, which happened outside the school, under control. On all accounts, both officer and civilian, the interaction between the students was determined to be non-criminal. § 87(2)(g)

It is therefore recommended that **Allegations D and E** be **Substantiated**.

PO Friscia’s BWC footage captured the entire interaction inside of the school. The BWC footage confirmed that PO Lopiccolo and PO Friscia did not say, “Shut the fuck up, you’re not letting us speak” as alleged by § 87(2)(b). It is therefore recommended that **Allegations F to G** be closed as **Unfounded**.

The BWC captured PO Friscia referring to § 87(2)(b) as “a clown.” On his own account, PO Friscia made that statement because he felt § 87(2)(b) was insulting his intelligence and being unprofessional. § 87(2)(g)

It is therefore recommended that **Allegation H** be **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (Board Review 12).
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- PO Lopiccolo has been a member-of-service for 18 years and has been a subject in 17 cases and 29 allegations, four of which were substantiated,
 - 201401090 involved substantiated allegations of physical force, stop of a person, discourtesy (word), and discourtesy (action). The Board recommended Charges and the NYPD imposed Charges.

- PO Friscia has been a member-of -service for four years and has been names a subject in one complaint and one allegation, which was not substantiated.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- As of January 11, 2021, the New York City Office of the Comptroller has no record of Notice of Claim being filed in regards to this complaint (Board Review 16).

Squad No.: 4

Investigator:	<u>Charis Jones</u>	<u>Inv. Charis Jones</u>	<u>7/12/2021</u>
	Signature	Print Title & Name	Date

Squad Leader: Raquel Velasquez IM Raquel Velasquez 7/12/2021
Signature Print Title & Name Date

Reviewer: _____

Signature Print Title & Name Date